

22STCV41036C 22STCV41036C

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TENTATIVE

RULING

DEPARTMENT

415

HEARING DATE

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MOTION

Motion

for Summary Adjudication

MOVING PARTIES

Plaintiffs

Carrie Miller and Wake Leroux

OPPOSING PARTY

Defendant

Matthew Schellhas

BACKGROUND

Plaintiffs Carrie

Miller (“Miller”) and Wake Leroux (collectively, “Plaintiffs”) move for summary adjudication of various issues against Defendant Matthew Schellhas (“Defendant”). Defendant opposes the motion.

“A party may move

for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (Code Civ. Proc., § 437c, subd. (f)(1).) Plaintiffs’ Issue No. 2 does not concern an issue for punitive damages. As such, it is not a proper issue for summary adjudication. Likewise, Plaintiffs’ Issue No. 6 does not seek summary adjudication of a cause of action, claim for punitive damages, or issue of duty.

“There is little

flexibility in the procedural imperatives of [Code of Civil Procedure section 437c], and the issues raised by a motion for summary judgment (or summary adjudication) are pure questions of law. As a result, section 437c is unforgiving; a failure to comply with any one of its myriad requirements is likely to be fatal to the offending party.” (Brantley v. Pisaro (1996) 42 Cal.App.4th 1591, 1607.)

Accordingly, the

Court does not consider Issues Nos. 2 or 6.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of

material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Ibid.)

When the plaintiff seeks summary adjudication, the plaintiff bears the burden to produce admissible evidence on each element of every cause of action at issue. (Code Civ. Proc., § 437c, subd. (p)(1).)

EVIDENCE

Defendant's

evidentiary objection No. 7 is sustained.

Defendant's evidentiary objections Nos. 1-6 are overruled. The Court declines to rule on the other evidentiary objections, as the Court did not rely on them in its ruling. (Code Civ. Proc., § 437c, subd. (q).)

DISCUSSION

Ninth Cause of Action:

Breach of Contract

Plaintiffs'

ninth cause of action is for breach of contract. In the operative complaint, Plaintiffs allege Miller loaned Defendant \$25,000, which Defendant failed to repay. (Complaint, ¶¶ 120-122.) The pleadings set the outer limits of materiality in a summary judgment proceeding. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382.)

In support of

their motion, Plaintiffs cite Defendant's deposition testimony. At deposition, Defendant testified Miller deposited \$25,000 on Defendant's behalf. (Declaration of Carrie Miller, Exhibit A, p. 47.)

Defendant disputed Miller's deposit of the funds into the account

constituted a loan. (Id., Exhibit A, pp. 56-57.) Likewise, Plaintiffs advance Defendant's responses to Plaintiffs' written discovery, in which Defendant denied Miller loaned Defendant \$25,000. (Id., Exhibits B, C.) As such, Plaintiffs' evidence reveals triable issues of material fact exist as to whether Miller loaned \$25,000 to Defendant.

Accordingly, Plaintiffs fail to satisfy their burden to show Defendant breached a loan agreement with Plaintiffs. Therefore, the motion for summary adjudication of the ninth cause of action for breach of contract is denied.

Eleventh Cause of Action: Fraud

Plaintiffs' eleventh cause of action is for fraud. "The elements of fraud, which give rise to the tort action for deceit, are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) justifiable reliance, and (5) resulting damage." (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1255.) Because damages are an element of a cause of action for fraud, Plaintiffs cannot obtain summary adjudication on this cause of action without proving the damages to which Plaintiffs are entitled. (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241.)

In this regard, Plaintiffs fail to advance evidence which establish Plaintiffs are entitled to a specific sum of damages. Instead, Plaintiffs approximate their damages and seek to leave the issue of precise damages for later. (See, e.g., Motion for Summary Adjudication, p. 14.) This is improper.

Accordingly, the motion for summary adjudication of the eleventh cause of action is denied.

Thirteenth Cause of Action: Breach of Fiduciary Duty

In

the complaint, Plaintiffs allege Defendant breached his fiduciary duty to Plaintiffs as a financial advisor and money manager with respect to investing \$50,000 in tokens on Plaintiffs' behalf.

(Complaint, ¶¶ 205-207.) In

support of their argument Defendant breached fiduciary duties owed to them, Plaintiffs cite their own complaint and mediation brief. The complaint and mediation brief are not evidence. Plaintiffs also cite "communications" from Defendant.

(Declaration of Carrie Miller, ¶ 7, Exhibit E.) Plaintiffs fail to explain in what manner Defendant made these alleged representations, when Defendant made them, and how they were received by Plaintiffs. As such, Plaintiffs fail to authenticate the communications. (Evid. Code, §§ 1400, 1401.)

As Plaintiffs fail

to advance admissible evidence to support their claim Defendant owed fiduciary duties to Plaintiffs, the Court denies the motion for summary adjudication of Issue No. 5.

CONCLUSION AND ORDER

Plaintiffs fail to meet their burden to show

Plaintiffs are entitled to summary adjudication. As such, the motion is denied.

Plaintiff is ordered to give notice of the

Court's ruling and to file proof of service of same.